

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: John Kurita	Team: Team # 4	CCRB Case #: 201006843	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 05/20/2010 10:40 PM	Location of Incident: 145 1st Avenue and the 9th Precinct stationhouse	18 Mo. SOL 11/20/2011	Precinct: 09
Date/Time CV Reported Fri, 05/21/2010 12:02 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 05/21/2010 12:02 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Keith Gallagher	04733	938517	009 PCT
2. POM Steven Kennedy	04017	906560	009 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Obrien	22886	946068	009 PCT
2. SGT Rodolfo Rega	04431	931018	009 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Keith Gallagher	Discourtesy: PO Keith Gallagher spoke obscenely to § 87(2)(b) in the vicinity of 145 1st Avenue and inside the 9th Precinct stationhouse.	A . Unfounded
B . POM Steven Kennedy	Force: PO Steven Kennedy used physical force against § 87(2)(b) inside the 9th Precinct stationhouse and in front of the 9th Precinct stationhouse.	B . Unfounded

Case Summary

On May 20, 2010, at approximately 10:40 p.m. in the vicinity of 145 1st Avenue in Manhattan, inside the 9th Precinct stationhouse, and in front of the 9th Precinct stationhouse, § 87(2)(b) interacted with officers he identified as PO Keith Gallagher and PO Steven Kennedy, both of the 9th Precinct. The following allegations resulted:

- **Allegation A: Discourtesy:** PO Keith Gallagher spoke obscenely to § 87(2)(b) in the vicinity of 145 1st Avenue and inside the 9th Precinct stationhouse. § 87(2)(g)
§ 87(2)(b) it is recommended that **Allegation A** be closed as **Unfounded**.
- **Allegation B: Physical Force:** PO Steven Kennedy used physical force against § 87(2)(b) inside the 9th Precinct stationhouse and in front of the 9th Precinct stationhouse. § 87(2)(g)
§ 87(2)(b) it is recommended that **Allegation B** be closed as **Unfounded**.

Results of Investigation

Civilian Statement

Complainant: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) male, § 87(2)(b), with brown hair and brown eyes was interviewed by the CCRB on May 21, 2010. § 87(2)(b)

CCRB Testimony:

On May 20, 2010, § 87(2)(b) walked northbound on 1st Avenue. At the intersection of 9th Street and 1st Avenue, he observed a crowd of people to his left and officers gathered. He turned his head as he walked in order to watch and bumped into an officer identified by the investigation as PO Keith Gallagher of the 9th Precinct. He apologized and continued walking. PO Gallagher asked him, “Why don’t you watch where you’re going, asshole?” § 87(2)(b) apologized again, continued walking, and waved his hand at PO Gallagher in a dismissive manner. PO Gallagher and his partner, PO O’Brien, also of the 9th Precinct, caught up with § 87(2)(b) placed him in handcuffs, and placed him under arrest. § 87(2)(a) 160.50

§ 87(2)(b) was transported to the 9th Precinct stationhouse and placed in a holding cell where he complained that the handcuffs were uncomfortable. PO Gallagher told him, “Shut the fuck up unless you want your shoelaces and belt removed and searched. You must have been drunk or fucking crazy.” PO O’Brien removed § 87(2)(b) from the holding cells after approximately ten minutes and while he stood outside of the holding cells, a passing officer identified by the investigation as PO Steven Kennedy of the 9th Precinct, bumped into him with his shoulder.

§ 87(2)(b) was released from the stationhouse with a summons. Outside of the stationhouse he called his friend on the telephone and told her, “Holy shit, you’re not going to fucking believe this.” PO Kennedy was walking by, heard § 87(2)(b) say this and instructed him to leave the area. § 87(2)(b) told PO Kennedy to leave him alone because he was trying to get his bearings. PO Kennedy told him, “That’s it, you’re trespassing,” and grabbed him by the shirt and bent him over a nearby concrete pylon. PO Kennedy then pushed § 87(2)(b) in the

face with an open palm. § 87(2)(b) yelled, “Holy shit, you just assaulted me,” and ran away. § 87(2)(b) was not injured and did not seek medical treatment.

Witness: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) black male, provided a telephone statement to the CCRB on September 3, 2010. § 87(2)(b). (encl. 6A)

CCRB Testimony:

§ 87(2)(b) was arrested for assault on May 20, 2010. He was transported to the 9th Precinct stationhouse and placed in the holding cells at approximately 9:00 p.m. While he was in the holding cells, an individual whom he described as a tall, thin, white male with black hair, identified by the prisoner holding pen roster as § 87(2)(b) was placed in an adjoining cell. An officer who § 87(2)(b) described as a white male with dark gray or black hair, and approximately 45 years old, instructed § 87(2)(b) to remain quiet or he would make the situation worse for himself. § 87(2)(b) did not act out or behave in a disorderly manner. § 87(2)(b) did not hear any officer curse at § 87(2)(b). He did not observe any officer hold him outside of the cells. He did not observe any officer bump into him while he was in the vicinity of the holding cells. § 87(2)(b) was in the holding cells for approximately five to ten minutes and § 87(2)(b) did not leave the cells at any time while § 87(2)(b) was detained.

NYPD Statements:

Subject Officer: PO KEITH GALLAGHER (encl. 7 A-F)

- PO Keith Gallagher, a § 87(2)(b) white male, § 87(2)(b) with brown hair and blue eyes, was interviewed by the CCRB on August 17, 2010.
- On May 20, 2010, PO Gallagher was assigned to patrol within the confines of the 9th Precinct with PO Michael O’Brien, he was in uniform, assigned to marked patrol car number 2741, and worked a tour from 3:00 p.m. to 11:35 p.m.

Memo Book

PO Gallagher had the following memo book entries regarding the incident: 10:40 p.m.: 10-92C (Arrest) one under at 145 1st Avenue. 9th Precinct Sgt. on scene. Transported one male to 9th Precinct. 11:00 p.m. 10-96CC (Criminal Court Summons) § 87(2)(a) 160.50 Warrant Check Negative, uncooperative and extremely aggressive perpetrator. Released from 9th Precinct with summons by PO O’Brien.

CCRB Testimony:

On May 20, 2010, PO Gallagher and PO O'Brien responded to an emotionally disturbed person call in the vicinity of 9th Street and 1st Avenue. PO Gallagher stood in the corner of 1st Avenue and 9th Street, facing east when § 87(2)(b) bumped into him. § 87(2)(b) told him, "I'm trying to get the fuck through." PO Gallagher was shocked when he heard § 87(2)(b) tell him this because he did not seem to be an emotionally disturbed person or a drug user. PO Gallagher let this go and did not respond to him. § 87(2)(b) crossed the street and gave him the finger and began cursing. PO Gallagher determined that § 87(2)(b) was causing public alarm and acting disorderly, so he approached him in order to place him under arrest. § 87(2)(b) was placed inside a patrol car and PO Gallagher and PO O'Brien transported him to the 9th Precinct stationhouse. On the way back to the stationhouse, § 87(2)(b) told PO Gallagher and PO O'Brien that they were "retarded."

Inside the 9th Precinct stationhouse § 87(2)(b) was brought in front of the desk sergeant. § 87(2)(b) was "rabble rousing" inside the stationhouse, making derogatory remarks about police officers and PO Gallagher told him to shut up because he was making things harder for himself. PO Gallagher stated that his intention was not to put him through the system. He wanted to get him out of the stationhouse with a summons. PO Gallagher placed § 87(2)(b) inside the cells and PO O'Brien checked § 87(2)(b)'s identification for open warrants. § 87(2)(b) was vocal throughout this process, continuing to make derogatory remarks about police officers and protesting his detainment, but he did not yell. PO Gallagher told him, "you must be crazy." Officers inside the stationhouse did not interact with or engage § 87(2)(b). PO O'Brien escorted § 87(2)(b) out of the stationhouse. PO Gallagher did not observe § 87(2)(b) outside of the stationhouse.

PO Gallagher did not tell § 87(2)(b) "Why don't you watch where you're going, asshole?" He did not tell him to "shut the fuck up." He did not tell § 87(2)(b) "you must be fucking crazy." He did not observe any officer bump into him or any physical interaction between § 87(2)(b) and any officers.

Subject Officer: PO STEVEN KENNEDY (encl. 8A-G)

- PO Steven Kennedy, a § 87(2)(b) white male, § 87(2)(b), with salt and pepper colored hair and blue eyes, was interviewed by the CCRB on August 20, 2010.
- On May 20, 2010, PO Kennedy was assigned to patrol within the confines of the 9th Precinct with PO William Svenstrup. He was in uniform and worked a tour from 3:00 p.m. to 11:35 p.m.

CCRB Testimony:

PO Kennedy did not have any independent recollection of any interaction with § 87(2)(b) on May 20, 2010. He confirmed that he was inside the stationhouse at the time of the incident and he ended his tour at approximately the same time that § 87(2)(b) was released from the stationhouse.

Witness Officer: PO MICHAEL O'BRIEN (encl. 9A-H)

- *Michael O'Brien, A § 87(2)(b) white male, § 87(2)(b) with blonde hair and blue eyes, was interviewed by the CCRB on August 9, 2010.*
- *On May 20, 2010, PO O'Brien was assigned to patrol within the confines of the 9th Precinct with PO Keith Gallagher, he was in uniform, assigned to a marked patrol car, and worked a tour from 3:00 p.m. to 11:35 p.m.*

Memo Book

PO O'Brien had the following memo book entries regarding the incident: 10:10 p.m. one under arrest at 145 1st Avenue. 9th Precinct Sgt. on scene, transported one male to 9th Precinct. 11:00 p.m. 10-96 (Summons Issued) § 87(2)(a) 160.50 Warrant Check Negative. Uncooperative and extremely aggressive summons number § 87(2)(b) § 87(2)(b), § 87(2)(b) § 87(2)(b) Brooklyn, NY § 87(2)(b) brown eyes.

CCRB Testimony:

On May 20, 2010, PO O'Brien and PO Gallagher responded to a call regarding an emotionally disturbed person in the vicinity of 145 1st Avenue in Manhattan. While they waited for an ambulance to respond to the location, § 87(2)(b) walked toward them and bumped into PO Gallagher. PO O'Brien stated that § 87(2)(b) hit PO Gallagher hard enough that he almost lost his balance and stated that it was his opinion that § 87(2)(b) bumped into PO Gallagher on purpose. § 87(2)(b) did not say anything about officers being in his way. He did not apologize for bumping into PO Gallagher. He did not stop his forward progress after he bumped into PO Gallagher. PO O'Brien and PO Gallagher called out to § 87(2)(b) as he passed, "Hey, excuse me." § 87(2)(b) continued walking and gave PO O'Brien and PO Gallagher the middle finger and said, "Fuck you guys!" PO O'Brien and PO Gallagher approached § 87(2)(b) and placed him in handcuffs. Initially, § 87(2)(b) was bothered by this, but he did not resist arrest and PO O'Brien and PO Gallagher did not use any physical force to detain § 87(2)(b).

PO O'Brien and PO Gallagher escorted him to the 9th Precinct stationhouse, searched him, and placed him in the holding cells. PO O'Brien issued § 87(2)(b) a summons and released him. After he was released, PO O'Brien and PO Gallagher resumed patrol and saw § 87(2)(b) outside. § 87(2)(b) was looking at the summons. PO O'Brien and PO Gallagher passed by him and drove away in their patrol car. PO O'Brien did not speak to him.

PO O'Brien did not hear any officer tell § 87(2)(b) "You must be drunk or fucking crazy," call him an asshole, or tell him shut the fuck up. PO O'Brien did not observe any officer bump § 87(2)(b) with his shoulder inside the 9th Precinct stationhouse. He did not observe any officer interact with § 87(2)(b) or push his palm into § 87(2)(b)'s face outside of the 9th Precinct stationhouse.

Witness Officer: SGT RODOLFO REGA (encl. 10 A-D)

- *Sgt. Rodolfo Rega, a § 87(2)(b) white male, § 87(2)(b) with black hair and brown eyes, was interviewed by the CCRB on August 27, 2010.*
- *On May 20, 2010, Sgt. Rega was assigned as the desk officer of the 9th Precinct stationhouse. He was in uniform and worked a tour from 2:50 p.m. to 11:57 p.m. Sgt. Rega did not have any memo book entries regarding this incident or at the time of the incident.*

CCRB Testimony:

Sgt. Rega had no independent recollection of the incident.

NYPD Documents

Command Log: The arrest of § 87(2)(b) was shown at 10:45 p.m. by PO O'Brien. § 87(2)(b) was released at § 87(2)(b) (encl. 12 A-B)

Prisoner Holding Pen Roster: § 87(2)(b) was logged into the cells at 8:50 p.m. and logged out at § 87(2)(b) § 87(2)(b) was logged into the cells at 10:45 p.m. and logged out at an unspecified time (encl. 13 A-B).

Summons for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of September 7, 2010 with regard to the incident (encl. 16 A).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 3A)

Subject Officers CCRB History

- PO Keith Gallagher has been a member of the service for 5 years and there are no substantiated CCRB allegations against him (encl. 1A).
- PO Steven Kennedy has been a member of the service for 16 years and there are 2 substantiated CCRB allegations against him with regard to CCRB case number 9703315, which was closed on March 30, 1998 by an indeterminate panel. The board recommended that he receive instructions. The NYPD disposition is unknown. There is 1 substantiated CCRB allegation against him with regard to CCRB case number 200716583. The board recommended that he receive command discipline. The department was unable to prosecute (encl. 2A-B).

Conclusion

Identification of Subject Officers

- PO Gallagher acknowledged that he interacted with § 87(2)(b)
- § 87(2)(g) § 87(2)(b) provided the partial name “Kenned” or “Kennedy” read from PO Kennedy’s name tag. PO Kennedy acknowledged that he was in the stationhouse at the time that § 87(2)(b) was in the stationhouse.

Investigative Findings and Recommendations

- **Allegation A: Discourtesy:** PO Keith Gallagher spoke obscenely to § 87(2)(b) in the vicinity of 145 1st Avenue and inside the 9th Precinct stationhouse.
- **Allegation B: Physical Force:** PO Steven Kennedy used physical force against § 87(2)(b) inside the 9th Precinct stationhouse and in front of the 9th Precinct stationhouse.

§ 87(2)(g)

PO Gallagher denied that the alleged misconduct occurred and PO Kennedy had no recollection of interacting with § 87(2)(b). PO O'Brien stated that the alleged misconduct did not occur. In his telephone statement to the CCRB, § 87(2)(b) stated that the misconduct alleged by § 87(2)(b) inside the 9th Precinct stationhouse did not occur. § 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **Unfounded**.

Team: **4**

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Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date